

Suneeta Pandey v. State of U.P. and 2 Others

High Court of Judicature at Allahabad · Division Bench · 28 February 2024 · 2024:AHC:35192-DB · WRIT - C No. 6455 of 2024 · **Disposed; consider objection and pass final assessment under Supply Code.**

HEADNOTE

Writ against a provisional assessment notice in an electricity-theft case disposed of with a direction that respondent No. 3 consider the objection dated 15 December 2023, though filed about a year after the notice, and pass the final assessment strictly in accordance with the procedure under the Electricity Supply Code, 2005. The Bench did not decide whether theft was made out or what sum was payable.

FACTUAL SUMMARY

Suneeta Pandey challenged a notice of provisional assessment dated 16 January 2023 issued by the electricity department in a case of theft of electricity. Counsel for the department informed the Division Bench that she had submitted her reply only on 15 December 2023, about one year after the notice, and that no final assessment order had yet been made. The respondents were the State of Uttar Pradesh and two others.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::final-assessment-procedure

final assessment after provisional notice in a theft case

HOLDING

Respondent No. 3 must consider the objection dated 15.12.2023 to the provisional assessment notice of 16.01.2023 and pass the final assessment order strictly in accordance with the procedure prescribed under the Electricity Supply Code, 2005. ¶ 3

FLAG no numbered clause cited; the order refers only to the procedure under the Electricity Supply Code, 2005

PRINCIPLE TAGS

UP-2005::final-assessment-procedure The writ was disposed by directing respondent No. 3 to consider the objection of 15.12.2023 and to pass the final assessment strictly under the Supply Code, 2005 procedure, without a finding on the theft allegation. ¶ 3

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER THEFT OF ELECTRICITY WAS ESTABLISHED AND WHAT AMOUNT, IF ANY, THE PROVISIONAL ASSESSMENT DATED 16.01.2023 COULD SUPPORT

The notice was neither quashed nor upheld; the assessing authority was left to consider the objection and pass the final order. ¶ 3